

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

PLAINTIFF

2017 MAY -1 PM 3:48

vs.

CLERK OF COURT
CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

BY Yngre

DEFENDANT

PETITION FOR CITATION OF CONTEMPT

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Citation of Contempt against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That on August, 2016, This Court entered an Order regarding child support, a true and correct copy of which is attached hereto as Exhibit "A".

4.

That the Defendant herein, Matthew Oliver Reardon, has willfully and contumaciously failed to pay child support as Ordered.

5.

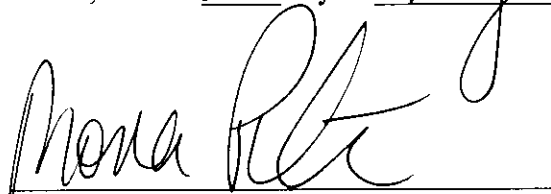
That the Defendant herein, Matthew Oliver Reardon, is in both criminal contempt and civil contempt of this Court for his willful failure and/or refusal to abide by the Orders of this Court.

Plaintiff would show that Defendant Matthew Oliver Reardon should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should be taxed to Matthew Oliver Reardon.

WHEREFORE, PREMISES CONSIDERED, Plaintiff Phyllis Marie Crowder respectfully requests that the Court grant unto her the following relief:

1. That the Court cite Matthew Oliver Reardon with both civil and criminal contempt of Court for his willful violation of the Orders entered in this cause as stated above, and that the Court issue such orders as it finds necessary to restore his respect for the Court and coerce him into compliance with said Orders, including, but not limited to, orders of incarceration or monetary fines;
2. That Phyllis Marie Crowder be granted a judgment against Matthew Oliver Reardon for her reasonable attorney's fees and costs suffered in bringing this matter; and,
3. And if mistaken for the relief prayed for and entitled to, then the Plaintiff prays for such other, further, general, specific or special relief to which she may be entitled.

RESPECTFULLY SUBMITTED, this the 2nd day of May, 2017.



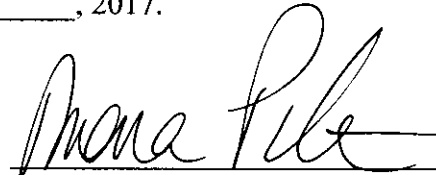
MONA T. PITTMAN, MSB # 9754
Attorney for the Plaintiff

MONA T. PITTMAN, ESQUIRE
P. O. Box 2958
Oxford, Mississippi 38655
Telephone: (662) 234-9346
Facsimile: (888) 922-5946
mona@panola.com

CERTIFICATE OF SERVICE

I, **MONA T. PITTMAN**, do hereby certify that I have this date mailed, by United States Mail, postage prepaid, a true and correct of the above and foregoing Petition for Citation of Contempt to the following:

This the 2nd day of May, 2017.



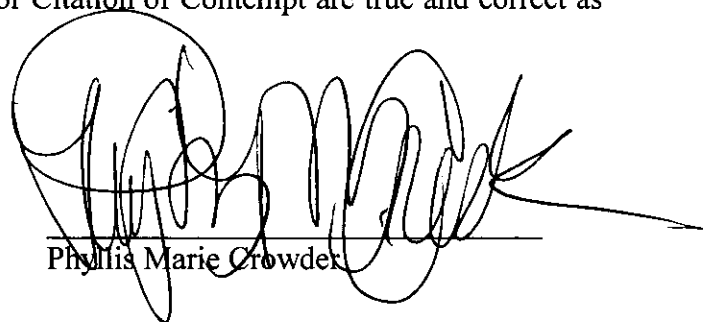
MONA T. PITTMAN

STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Citation of Contempt are true and correct as therein stated.

This the _____ day of May, 2017.



Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the _____ day of April, 2017.

NOTARY PUBLIC

MY COMMISSION EXPIRES:

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2016 AUG -8 PM 2:49

CHANCERY CLERK

**IN THE MATTER OF THE CUSTODY OF
LYDIA ELISE REARDON**

CAUSE NO.: CV 2016-422

BY DC

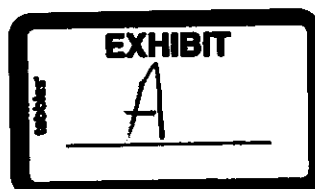
**MATTHEW OLIVER REARDON and
PHYLLIS MARIE CROWDER**

CO-PLAINTIFFS

**AGREED ORDER TO ESTABLISH PATERNITY,
CHILD CUSTODY, AND CHILD SUPPORT**

CAME ON for hearing in the above-referenced matter on the *Joint Complaint to Establish Paternity, Child Custody, and Child Support* filed by Co-Plaintiffs Matthew Oliver Reardon and Phyllis Marie Crowder and the Court finding that it has jurisdiction over the subject matter herein and of the parties hereto, and having been advised that the parties have reached an agreement hereby finds as follows:

1. That on August 19, 2014, Plaintiff Phyllis Marie Crowder gave birth to a female child, namely Lydia Elise Reardon (the "Minor Child");
2. That the Minor Child presently resides with Plaintiff Phyllis Marie Crowder at 22 County Road 422, Water Valley, Lafayette County, Mississippi, and has done so since on or about July 8, 2016;
3. That neither party has participated, as a party or witness or in any other capacity, in any other proceeding concerning the custody of or visitation with the Minor Child;



SCANNED

4. That neither party knows of any other proceeding that could affect the current proceeding, including proceedings for enforcement and proceedings relating to domestic violence, protective orders, termination of parental rights, or adoptions;
5. That neither party knows of any other person not a party to this proceeding that has physical custody of, or claims rights of legal custody of, or visitation with, the Minor Child;
6. That neither party has been married one to the other;
7. That Plaintiff Matthew Oliver Reardon has accepted his paternity of the Minor Child by signing the Minor Child's birth certificate;
8. That Plaintiff Matthew Oliver Reardon is hereby found to be the natural father of the Minor Child;
9. That the parties are both fit and proper to have full care, custody and control of the Minor Child;
10. That the parties have reached an agreement as to the custody and support of the Minor Child as more fully set forth in that document styled *Child Custody, Visitation and Child Support Agreement*, of which a true and correct copy of said document is attached hereto as Exhibit "A" and incorporated herein by reference thereto.

IT IS THEREFORE, ORDERED AND ADJUDGED that the custody and support of Lydia Elise Reardon shall be provided in accord with the provisions of the *Child Custody, Visitation and Child Support Agreement* attached hereto as Exhibit "A" and said agreement is hereby incorporated herein.

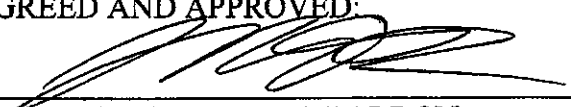
SO ORDERED AND ADJUDGED, this 8TH day of August, 2016.


Chancery Judge

AGREED AND APPROVED:


PHYLLIS MARIE CROWDER

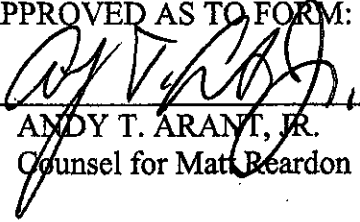
AGREED AND APPROVED:


MATTHEW OLIVER REARDON

APPROVED AS TO FORM:


J. RHEA TANNEHILL, JR.
Counsel for Lizzy Crowder

APPROVED AS TO FORM:


ANDY T. ARANT, JR.
Counsel for Matt Reardon

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

IN THE MATTER OF THE CUSTODY OF
LYDIA ELISE REARDON

CAUSE NO.: CV2016-422

CHILD CUSTODY, VISITATION AND CHILD SUPPORT AGREEMENT

THIS AGREEMENT is made and entered into this date by and between MATTHEW OLIVER REARDON, hereinafter referred to as "Father" and PHYLLIS MARIE CROWDER, hereinafter referred to as "Mother".

WITNESSETH

WHEREAS, the parties to this agreement have a child together, namely, Lydia Elise Reardon; and no more are expected; and

WHEREAS, the Father and Mother do desire to settle and adjust out of court, all rights and obligations which do or may exist between them; and

WHEREAS, both parties are voluntarily executing this agreement free of undue influence, duress, and free from any cause, reason, promise, or consideration other than set out in this agreement.

WHEREAS, both parties have been advised that, pursuant to Rule 8.05 of the Uniform Chancery Court Rules, each party in every domestic case involving economic issues and/or property division shall provide the opposite party or counsel certain disclosures as specifically spelled out in the rule unless excused by Order of the Court. Rule 8.05 includes requirement of the following disclosures:

1. A detailed written statement of actual income, expenses, assets and liabilities, such a statement to be in the form as attached to the Rule;



2. Copies of the proceeding years Federal and State Tax Returns, in full form as filed, or copies of W-2's if the return has not yet been filed;

3. Both parties have been advised of their right to receive the financial statement and disclosure set forth in Rule 8.05 of the Uniform Chancery Court Rules as well as the beneficial effect of imposition of said Rule. The parties hereby waive the right to receive the information set forth in Rule 8.05 of the Uniform Chancery Court Rules.

WHEREAS, the parties desire to enter into an agreement with regard to their respective rights and obligations in an amicable and mutually acceptable manner. Agreements herein set forth, the parties do agree as follows:

CHILD CUSTODY

The parties agree that they will share joint legal custody of Lydia Elise Reardon and that Mother shall have primary and paramount physical custody, care, and control of the child of the parties, subject to standard visitation rights of Father and in no event less than those visitation rights set out in the following visitation schedule.

CHILD SUPPORT

Monthly Support. Father shall pay child support for the use and benefit of the minor child in the amount of Six Hundred Dollars (\$600.00) per month, said amount being paid directly from Father to Mother for the benefit of the minor child until the minor child is twenty-one years of age or has otherwise become emancipated as the term is defined at law. The first payment shall be due and payable by August 15, 2016, with each successive payment due and payable on the fifteenth (15th) day of each month thereafter.

Health Insurance. The minor child currently qualifies for Medicaid, and it is anticipated

that she will continue to do so. It is the duty of the Mother to make any and all deliberate efforts to meet any requirements necessary to continue to keep the minor child insured under Medicaid. Should the minor child not be insured by Medicaid, then the Father will be responsible for health insurance for the minor child. Father and Mother will half the cost of any medical, hospitalization, pharmaceutical, dental, orthodontic, optometric, or mental health expenses of the child of the parties which may be incurred by the child of the parties which are not covered by Medicaid or health insurance.

Life Insurance. The Father will purchase a life insurance policy on himself in the amount of \$100,000 with Lydia Elise Reardon as the sole irrevocable beneficiary. The Father shall keep such a policy in place until the minor child is twenty-one years of age.

Likewise, the Mother will purchase a life insurance policy on herself in the amount of \$100,000 with Lydia Elise Reardon as the sole irrevocable beneficiary. The Mother shall keep such a policy in place until the minor child is twenty-one years of age.

Education. Mother and Father shall be equally responsible for all reasonable college expenses of the minor child until such time as the minor child becomes self-supportive, emancipated, married or an adult. The college shall be selected by the parties in timely consultation with each other. The parties shall consider the preference, qualifications, and abilities of the minor child and the financial resources available. Said expenses include, but are not limited to, tuition at a state college not to exceed that charged at the University of Mississippi for in-state students, room, board, allowance, books, fees, and transportation to and from school. Any scholarships or funds received from an educational trust fund or from a third party will be exhausted or used first and credited against any responsibility for these expenses. The minor child must maintain a "C" or better average and be a full-time student making the normally

scheduled progress for receiving her degree on a four (4) year schedule. Both parties will have full access to college records. All payments made pursuant to the provisions for support during college will be made directly to the provider.

Extracurricular Activities. The Father and Mother will half the cost of any and all extracurricular activities for the minor child until the age of twenty-one, which shall include lessons, camps and/or sports activities. The total amount of cost payable by the Father pursuant to the provisions of this paragraph shall be limited to Six Hundred and No/100 Dollars (\$600.00) each year.

Taxes. Marie Phyllis Crowder shall claim the minor child of the parties as a dependent for state and federal income tax purposes each year.

VISITATION

(a) WEEKENDS: Until such time as the minor child begins attending kindergarten, Father shall have visitation with the minor child every other weekend from Saturday morning at 8:00 o'clock a.m., until 8:00 p.m. on Sunday evening beginning immediately upon the execution of this *Child Custody, Visitation, Child Support, and Property Settlement Agreement*.

Once the minor child begins attending kindergarten, Father shall have visitation with the minor child every other weekend from Friday afternoon at 5:00 o'clock a.m., until 5:00 p.m. on Sunday afternoon.

Father shall be responsible for transportation. However, should either of the parties move their residence so that it is more than One Hundred (100) miles straight line distance from the other party's residence, then both Mother and Father shall meet at a mutually agreeable site which is located approximately halfway between their respective residences in order to exchange custody of the minor child.

(b) OFF WEEKS: On the weeks that the Father does not have weekend visitation and until such time as the minor child begins attending kindergarten, he shall have a 24 hour visitation in his home with the minor child beginning on Wednesday. This visitation shall begin at noon.

Once the minor child begins attending kindergarten, the off week visitation provided for by this paragraph shall cease.

(c) HOLIDAYS: The parties shall alternate visitation with the minor child the following holidays each year according to the following schedule:

(1.) EASTER: Father shall have holiday visitation with the minor child for Easter on each even year from 5:00 o'clock p.m. on the Thursday prior to Good Friday until 5:00 o'clock p.m. on Easter Sunday and Mother shall have holiday visitation with the minor child for Easter each odd year from 5:00 o'clock p.m. Thursday prior to Good Friday until 5:00 o'clock p.m. on Easter Sunday.

(2.) MEMORIAL DAY: Father shall have holiday visitation with the minor child for Memorial Day on each odd year from 5:00 o'clock p.m. on the Friday prior to Memorial Day until 5:00 o'clock p.m. on Memorial Day and the Mother shall have holiday visitation with the minor child for Memorial Day each even year from 5:00 o'clock p.m. on the Friday prior to Memorial Day until 5:00 o'clock p.m. on Memorial Day.

(3.) INDEPENDENCE DAY: Father shall have visitation with the minor child from 8:00 a.m. until 10:00 p.m. on July 4th each even year and Mother shall have visitation with the minor child from 8:00 a.m. until 10:00 p.m. on July 4th each odd year.

(4.) LABOR DAY: Father shall have holiday visitation with the minor child for Labor Day on each odd year from 5:00 o'clock p.m. on the Friday prior to Labor Day until 5:00 o'clock

p.m. on Labor Day and Mother shall have holiday visitation with the minor child for Labor Day each even year from 5:00 o'clock p.m. on the Friday prior to Labor Day until 5:00 o'clock p.m. on Labor Day.

(5.) THANKSGIVING: Father shall have holiday visitation with the minor child for Thanksgiving Day on each even year from 5:00 o'clock p.m. on the Wednesday prior to Thanksgiving until 5:00 o'clock p.m. on the Friday after Thanksgiving and Mother shall have holiday visitation with the minor child for Thanksgiving Day each odd year from 5:00 o'clock p.m. on the Wednesday prior to Thanksgiving Day until 5:00 o'clock p.m. on the Friday after Thanksgiving.

(6.) CHRISTMAS: Each of the parties shall have visitation with the minor child for at least one week during the Christmas Holidays each year. Mother shall have Christmas visitation beginning from the time the minor child is discharged from school for the Christmas holidays until 6:00 p.m. on December 25th each even year and Father shall have Christmas visitation beginning at 6:00 p.m. on December 25th of each even year for one (1) week. Father and Mother shall follow the opposite schedule for Christmas visitation in odd years. Accordingly, the minor child shall spend the New Years' Holiday with the party who did not have Christmas Eve each year. However, the parties agree that this visitation schedule shall be modified so as to ensure that each party has at least one (1) week of visitation during the Christmas Holidays.

(d.) With regard to these special days:

(1) MOTHER'S DAY: Mother shall have visitation with her minor child each Mother's Day regardless of whose weekend it may fall on, commencing at 5:00 p.m. on the Friday prior to Mother's Day and ending at 5:00 p.m. on Mother's Day.

(2) FATHER'S DAY: Father shall have visitation with the minor child each Father's

Day regardless of whose weekend it may fall on, commencing at 5:00 p.m. on the Friday prior to Father's Day and ending at 5:00 p.m. on Father's Day.

(e.) PRECEDENCE: The aforesaid Holiday Visitation Schedule shall supersede and take precedence over regular weekend visitation.

(f.) OTHER VISITATION: Father shall have the right of visitation with the child upon reasonable request and shall have such other periods of visitation as may be mutually agreed upon by and between the parties without the necessity of the modification of the *Child Custody, Child Support and Settlement Agreement* entered into by the parties. Such agreement shall not be unreasonably withheld.

(g.) OVERNIGHT GUEST: Both parties agree that both parties will not have an overnight guest of the opposite sex stay overnight while they are in custody of the child.

MISCELLANEOUS

1. **COUNSELING.** The Father agrees to be under the care of a counselor, and fulfill the treatment obligations as outlined by said counselor. At a minimum, this treatment shall include weekly counseling sessions. Failure to meet these requirements shall be deemed a violation of this agreement.

Likewise, the Mother agrees to be under the care of a counselor, and fulfill the treatment obligations as outlined by said counselor. At a minimum, this treatment shall include weekly counseling sessions. Failure to meet these requirements shall be deemed a violation of this agreement.

2. **NECESSARY DOCUMENTS.** Each party at the request of the other will execute and deliver all documents that may be necessary to give full effect to this Agreement.

3. **NONCOMPLIANCE.** Should either party incur any legal fees as a result of the

breach of any portion of this *Child Custody, Visitation, Child Support, and Property Settlement Agreement* by the other party, the Court shall award reasonable attorney's fees and suit expenses to the nondefaulting party. No breach, waiver, or default of any of the terms of this Agreement shall constitute a waiver of any subsequent breach or default of any of the terms of this Agreement.

4. **MODIFICATION.** A modification or waiver of any of the provisions of this Agreement shall be effective only if made in writing and executed with the same formality as this Agreement, and approved by the Court if such approval is required. Failure of either party to insist upon strict performances of any of the provisions of this agreement shall not be construed as a waiver of any subsequent default of the same or similar nature.

5. **REPRESENTATION.** Each party hereto agrees that no representation of any kind whatsoever has been made to him or her as an inducement to enter into this agreement, other than the representations set forth herein, and that this agreement contains all the terms for the contract between the two parties hereto.

A. Both the legal and practical effect of this agreement has been fully explained to both parties, and they both acknowledge that it is a fair agreement and it is not the result of any misrepresentation, fraud, duress, or undue influence exercised by either party upon the other, or by any person or persons upon either and they further agree that this agreement contains the entire understandings and all the covenants and the agreements by and between the parties. This agreement shall be binding upon and inure to the benefits of heirs, executors, and administrators of the parties hereto.

B. Mother is represented by J. Rhea Tannehill, Jr. of Oxford, and Father is represented by Andy Arant of Oxford. J. Rhea Tannehill, Jr.'s representation of Mother, and Andy Arant's

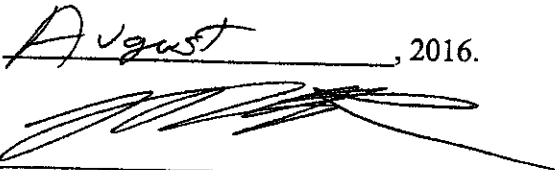
representation of the Father shall end after entry of an *Order of Child Custody, Visitation and Child Support Agreement* in this matter.

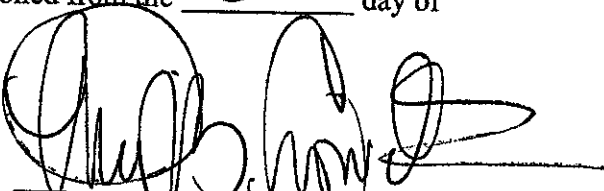
C. That the parties agree to hold harmless J. Rhea Tannehill, Jr. and/or Andy Arant for any tax consequences that they may have as a result of this agreement as they have not sought or received advice or counseling in that matter.

D. It is further agreed and understood by and between the parties that this is a full and complete contract and division of the same may be submitted to the Court of proper venue and jurisdiction for approval or disapproval by decree or otherwise.

The undersigned hereby affirmatively state that the terms hereto set out are acceptable to each of them. And further, the Father, MATTHEW OLIVER REARDON, would state unto the Court that he is financially able to meet the terms of this agreement. The Mother, PHYLLIS MARIE CROWDER, would also state unto the Court that she is capable of providing the necessary support for herself.

It is mutually understood and agreed between the parties hereto that this contract shall take effect immediately and the terms shall be reckoned from the 3rd day of August, 2016.


MATTHEW OLIVER REARDON


PHYLLIS MARIE CROWDER

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

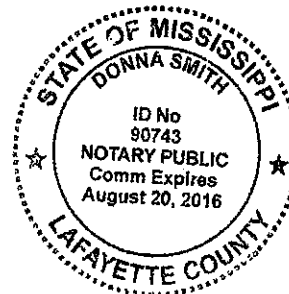
This day personally came and appeared before me, the undersigned authority within and for the aforesaid County and State within named MATTHEW OLIVER REARDON who acknowledged that he signed, executed and delivered the above and forgoing *Child Custody, Visitation and Child Support Agreement* on the date thereof as and for his individual act and

agreement of his own free will.

Sworn to and subscribed before me this 3rd day of August, 2016.

Donna Smith
NOTARY PUBLIC

My Commission Expires: 8/20/2016.



STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

This day personally came and appeared before me, the undersigned authority within and for the aforesaid County and State within named PHYLLIS MARIE CROWDER, who acknowledged that she signed, executed and delivered the above and forgoing *Child Custody, Visitation and Child Support Agreement* on the date thereof as and for her individual act and agreement of her own free will.

Sworn to and subscribed before me this 3rd day of August, 2016.

Angie Allen
NOTARY PUBLIC

My Commission Expires: _____



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2017 MAY -1 PM 3:48

PLAINTIFF

VS.

CHANCERY CLERK

CAUSE NO. : CV-2016-422W

MATTHEW OLIVER REARDON

BY

DEFENDANT

PETITION FOR EMERGENCY, TEMPORARY RELIEF WITHOUT NOTICE

COMES NOW the Plaintiff, PHYLLIS MARIE CROWDER, and moves the Court for Emergency, Temporary Relief Without Notice, and states as grounds therefore as follows:

1.

Phyllis Marie Crowder is an adult resident of Lafayette County, Mississippi, residing in Oxford, Mississippi 38655.

2.

The Defendant, Matthew Oliver Reardon is a resident of Lafayette County, Mississippi residing in Oxford, Mississippi 38655.

3.

The Plaintiff and Defendant are the natural parents of a minor child, L.E.R., born August 19, 2014. The Plaintiff and Defendant have never been married, and Agreed Order to Establish Paternity, Child Custody and Child Support was entered by this Court on August 8, 2016. A true and correct copy of said Order is attached as Exhibit "A".

4.

In recent days, the Defendant has been calling, harassing, and stalking the Plaintiff and threatening her with bodily harm.

5.

Moreover, Defendant has begun threatening the use of handguns against the Plaintiff. The Defendant is known to carry firearms on his persons.

6.

The Defendant is under the influence of illegal drugs, is mentally and emotionally unstable, is armed and dangerous, and is otherwise a clear, present, and immediate danger to the Plaintiff and the minor child.

7.

That the Plaintiff is in fear for the safety and well-being of her minor child, and for her physical person, and is in legitimate fear of imminent bodily harm from the Defendant.

8.

That counsel for the Plaintiff has attached her Affidavit which avers that providing Notice to the Defendant would, in counsel's best estimation, cause serious harm to the Plaintiff.

9.

The Plaintiff is in real danger of suffering immediate and irreparable injury, loss or damage unless this Court enters a Temporary Restraining Order Without Notice pursuant to Rule 65(b) thereby enjoining Matthew from:

(a) being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties;

(b) from visiting or contacting the residence of the Plaintiff;

(c) having contact with the Plaintiff or L.E.R., in person, through third parties, phone, text, computer or any other technical device, or any other means, directly or indirectly; and,

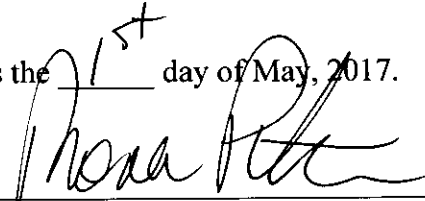
(d) Suspending the Defendant's visitation with the minor child until further Order of the Court.

10.

That the Sheriff of Lafayette County, Mississippi, and his deputies, and all other law enforcement officers, city, county, or state, should be authorized, empowered and directed immediately take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette county jail if he violates any provision of this Temporary Restraining Order.

WHEREFORE, PREMISES CONSIDERED, the Plaintiff respectfully requests that the Court enter an Emergency Temporary Order without Notice against the Defendant. The Plaintiff prays for any other relief she may be entitled to under the premises.

RESPECTFULLY SUBMITTED on this the 15th day of May, 2017.

By: 

MONA T. PITTMAN, MSB # 9754
ATTORNEY FOR PLAINTIFF

OF COUNSEL:

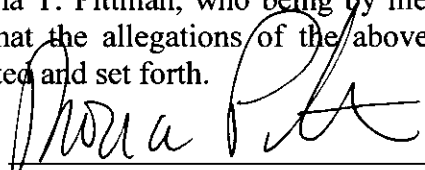
MONA T. PITTMAN, MSB # 9754
P. O. Box 2958
Oxford, Mississippi 38655
Telephone: (662) 234-9346
Facsimile: (888) 922-5946
mona@panola.com

AFFIDAVIT

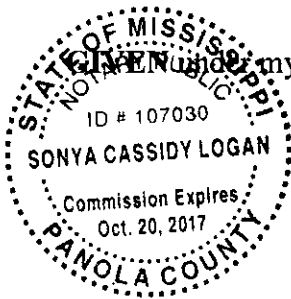
STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

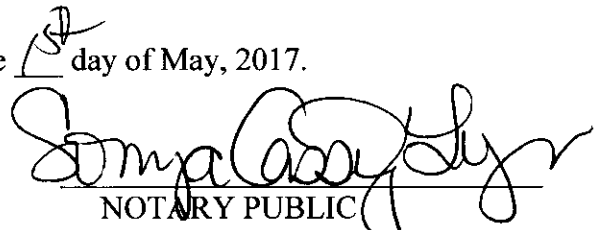
PERSONALLY appeared before me, the undersigned authority in and for the county and state aforesaid, the within named, Mona T. Pittman, who being by me first duly sworn according to law, states upon oath that the allegations of the above and foregoing Motion are true and correct as therein stated and set forth.



MONA T. PITTMAN



GIVEN under my hand and official seal this the 18 day of May, 2017.



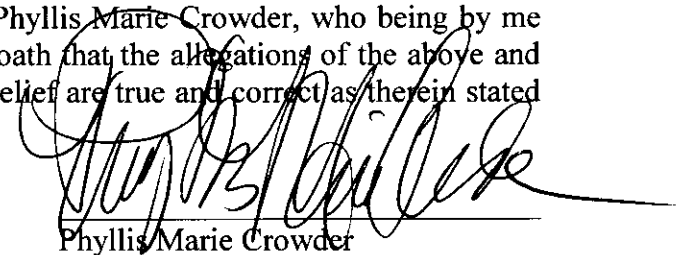
NOTARY PUBLIC

AFFIDAVIT

STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

PERSONALLY appeared before me, the undersigned authority in and for the county and state aforesaid, the within named, Phyllis Marie Crowder, who being by me first duly sworn according to law, states upon oath that the allegations of the above and foregoing Motion for Emergency Temporary Relief are true and correct as therein stated and set forth.



Phyllis Marie Crowder

GIVEN under my hand and official seal this the ____ day of May, 2017.

NOTARY PUBLIC

My Commission Expires: _____

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

CHANCERY CLERK

PLAINTIFF

V.

BY DC

[Signature]

CAUSE NO: CV-2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

ORDER

THIS CAUSE having been set for hearing on May 1st, 2017, regarding the *Petition for Emergency Temporary Relief with Notice* filed herein by the party, the Court having heard testimony, hereby finds and orders as follows:

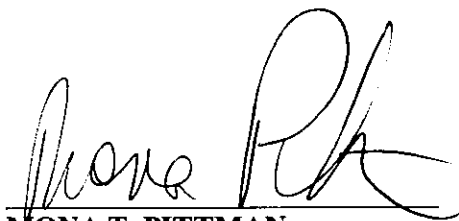
1. That the Petitioner's Petition for Temporary Relief with Notice is well taken and the Petitioner is hereby granted continued sole legal and physical custody of the minor child. The Court finds that the Petitioner could suffer immediate and irreparable injury by the Respondent and the Court should Order this Restraining Order based upon the verified Petition.
2. That the Respondent shall continue unto the Petitioner the amount of \$600.00 as child support every month on the 1st day of the month beginning May 1, 2017 and continuing until further Order of this Court.
3. That the Respondent shall have no visitation with the parties' minor child until this Court deems appropriate.
4. That the Respondent is restrained from going onto the property of the Petitioner, the Petitioner's work, the child's schools or any other place where the child may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner and/or the minor child. The Respondent is

further restrained from being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties; from visiting or contacting the residence of the Plaintiff; having contact with the Plaintiff or L.E.R., in person through third parties, phone, text, computer or any other technical device, or any other means, directly or indirectly.

5. That the Sheriff of Lafayette County, Mississippi and his deputies and all other law enforcement officers, city, county or state, should be authorized, empowered and directed immediately to take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette County Jail if he violates any provision of this Temporary Restraining Order.

This matter is continued for further hearing until the 9th day of May, 2017, at the Lafayette County Courthouse, in Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the parties may be heard.

SO ORDERED on this, the 1st day of May, 2017.



MONA T. PITTMAN

MSB # 9754

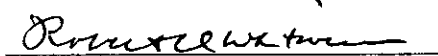
Attorney for Plaintiff

P.O. Box 2958

Oxford, MS 38655

Telephone: (662) 234-9346

mona@panola.com


CHANCELLOR

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

PLAINTIFF

V.

CAUSE NO: 2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

THE STATE OF MISSISSIPPI

TO: Matthew Reardon
Oxford, MS

TAKE NOTICE that a hearing will be held in the above styled and numbered action to which you are a Defendant on the 9th day of May 2017, at 9:30 a.m. a.m., at the Lafayette County Chancery Courthouse in Oxford, Mississippi.

() The action against you is one described by Rule 81(d)(1), MRCP, which is triable 30 days after completion of service of process in any manner other than by publication, or 30 days after the first publication where process is by publication.

(X) The action against you is one described by Rule 81(d)(2), MRCP, which is triable 7 days after service of process in any manner other than by publication or 30 days after the first publication where process is by publication.

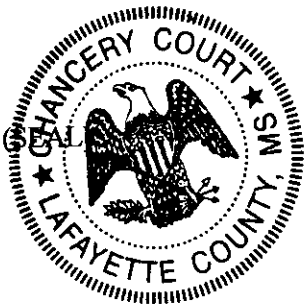
Attached to this Summons is a copy of a Petition for Citation for Contempt. Although Rule 81(d)(4) does not require you to file an answer or other pleading, you may do so if you deem it necessary to properly develop the issues, or if you are required to do so by the Court.

In the event, however, YOU SHOULD APPEAR IN COURT IN PERSON ON THE DATE, TIME AND AT THE PLACE DESIGNATED ABOVE to defend the action. Failure to appear may result in a judgment against you.

ISSUED under my hand and seal of said Court, on this the 1st day of May, 2017.

Sherry Wael
CHANCERY COURT CLERK

BY: Meri J. Harden
Deputy Clerk



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

PLAINTIFF

V.

2017 MAY -3 AM 11:18

CAUSE NO: 2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

THE STATE OF MISSISSIPPI

BY OF

msl

TO: Matthew Reardon
Oxford, MS

TAKE NOTICE that a hearing will be held in the above styled and numbered action to which you are a Defendant on the 9th day of May 2017, at 9:30 a.m. a.m., at the Lafayette County Chancery Courthouse in Oxford, Mississippi.

() The action against you is one described by Rule 81(d)(1), MRCP, which is triable 30 days after completion of service of process in any manner other than by publication, or 30 days after the first publication where process is by publication.

(X) The action against you is one described by Rule 81(d)(2), MRCP, which is triable 7 days after service of process in any manner other than by publication or 30 days after the first publication where process is by publication.

Attached to this Summons is a copy of a Petition for Citation for Contempt. Although Rule 81(d)(4) does not require you to file an answer or other pleading, you may do so if you deem it necessary to properly develop the issues, or if you are required to do so by the Court.

In the event, however, YOU SHOULD APPEAR IN COURT IN PERSON ON THE DATE, TIME AND AT THE PLACE DESIGNATED ABOVE to defend the action. Failure to appear may result in a judgment against you.

ISSUED under my hand and seal of said Court, on this the 1st day of May, 2017.

Sherry Wael
CHANCERY COURT CLERK

BY: *Meri S. Harden*
Deputy Clerk



The State of Mississippi
The County of Lafayette
I have this day executed the within instrument personally by delivering to
the within named Matt Reardon a true copy of this instrument
This the 1 day of May 2017
Sheriff F.D. "Buddy" East
By Tammy Rountt
Deputy Sheriff

SCANNED

CLERK OF COURT
LAFAYETTE COUNTY
MISSISSIPPI

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

CHANCERY CLERK

PLAINTIFF

V.

BY DC

[Signature]

CAUSE NO: CV-2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

ORDER

THIS CAUSE having been set for hearing on May 1st, 2017, regarding the *Petition for Emergency Temporary Relief with Notice* filed herein by the party, the Court having heard testimony, hereby finds and orders as follows:

1. That the Petitioner's Petition for Temporary Relief with Notice is well taken and the Petitioner is hereby granted continued sole legal and physical custody of the minor child. The Court finds that the Petitioner could suffer immediate and irreparable injury by the Respondent and the Court should Order this Restraining Order based upon the verified Petition.
2. That the Respondent shall continue unto the Petitioner the amount of \$600.00 as child support every month on the 1st day of the month beginning May 1, 2017 and continuing until further Order of this Court.
3. That the Respondent shall have no visitation with the parties' minor child until this Court deems appropriate.
4. That the Respondent is restrained from going onto the property of the Petitioner, the Petitioner's work, the child's schools or any other place where the child may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner and/or the minor child. The Respondent is

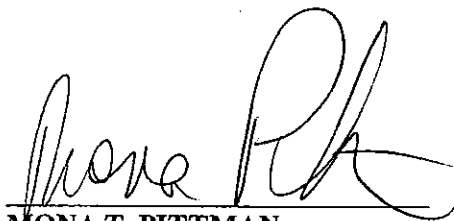
SCANNED

further restrained form being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties; from visiting or contacting the residence of the Plaintiff; having contact with the Plaintiff or L.E.R., in person through third parties, phone, text, computer or any other technical device, or any other means, directly or indirectly.

5. That the Sheriff of Lafayette County, Mississippi and his deputies and all other law enforcement officers, city, county or state, should be authorized, empowered and directed immediately to take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette County Jail if he violates any provision of this Temporary Restraining Order.

This matter is continued for further hearing until the 9th day of May, 2017, at the Lafayette County Courthouse, is Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the parties may be heard.

SO ORDERED on this, the 1st day of May, 2017.



MONA T. PITTMAN

MSB # 9754

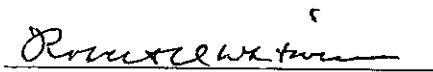
Attorney for Plaintiff

P.O. Box 2958

Oxford, MS 38655

Telephone: (662) 234-9346

mona@panola.com


CHANCELLOR

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2017 MAY -8 PM 12:36

PLAINTIFF

VERSUS

CHANCERY CLERK

CAUSE NO: 2016-422W

MATTHEW OLIVER REARDON

BY DC

65

DEFENDANT

**ANSWER TO PETITION FOR EMERGENCY TEMPORARY RELIEF WITHOUT NOTICE,
ANSWER TO PETITION FOR CITATION OF CONTEMPT AND DEFENDANT'S
COUNTERCLAIM**

COMES NOW, your DEFENDANT, Matthew Oliver Reardon, by and through his attorney, Charles E Yow III Esq, and files his Answer to Petition for Citation of Contempt and Modification of Child Support and Other Relief and Counterclaim for Citation of Contempt, Modification of Custody, Modification of Child Support, and Other Relief and for cause would state unto the Court the following, to-wit:

1. The DEFENDANT admits the claims in paragraph 1 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.
2. The DEFENDANT admits the claims in paragraph 2 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.
3. The DEFENDANT admits the claims in paragraph 3 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.
4. The DEFENDANT denies the claims in paragraph 4 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.
5. The DEFENDANT denies the claims in paragraph 5 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.
6. The DEFENDANT denies the claim of willful contempt within paragraph 6 of Plaintiff's

Petition for Emergency, Temporary Relief Without Notice, and states that the PLAINTIFF is under the influence of illegal drugs, is mentally and emotionally unstable due to the fact that she has been diagnosed with Dissociative Identity Disorder and has willfully failed to comply with the requirement in Section 1 of the Child Custody, Visitation, and Child Support Agreement that she be under the care of a counsellor and take part in weekly counselling sessions.

7. The DEFENDANT denies the claims found in paragraph 7 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice and states further that the PLAINTIFF is a danger to the minor child due to her failure to take medication and be under care of her psychiatrist.

8. The DEFENDANT denies the allegations in Paragraph 8 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice that PLAINTIFF has supported her Petition with a signed affidavit and would state that counsel for the PLAINTIFF has filed a Petition for Emergency, Temporary Relief Without Notice and a Petition for Citation of Contempt both of which make false statements about the DEFENDANT and that said Petitions are not supported by a signed affidavit.

9. The DEFENDANT denies the allegations in Paragraph 9 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.

10. The DEFENDANT denies the allegations in Paragraph 10 of Plaintiff's Petition for Emergency, Temporary Relief Without Notice.

11. The DEFENDANT admits the allegations found in Paragraphs 1, 2 and 3 of Plaintiff's Petition for Citation of Contempt.

12. The DEFENDANT denies the allegations found in Paragraphs 4, 5 and 6 of Plaintiff's Petition for Citation of Contempt and would show unto the court that the PLAINTIFF is barred by the doctrine of clean hands as the PLAINTIFF has willfully and repeatedly violated the terms of the Child Custody, Visitation, and Child Support Agreement that she entered into with the DEFENDANT.

NOW, having answered the Plaintiff's Petition, your DEFENDANT, Matthew Oliver Reardon

appropriate by this Court to the DEFENDANT upon modification of the Order.

14. That the PLAINTIFF, having engaged in drug abuse, possible prostitution, and staying out at nights, has, in doing so, neglected the best interest of her daughter in pursuit of her own personal pleasures and lustful fulfillment.

15. That the PLAINTIFF has neglected to responsibly tend to the medical needs and provisions of his daughters against the wishes of the DEFENDANT and has thus put off taking advantage of or failed completely to take advantage of preventive medical treatments for which the DEFENDANT's medical insurance provides full coverage at no additional charge.

16. That the PLAINTIFF should be denied any award of attorney's fees for her attorney because the DEFENDANT is, indeed, not in willful or deliberate violation of the prior judgment or decree pursuant to *Dunaway v. Busbin*, 498 So.2d 1218, 1222 (Miss. 1986) (emphasis added); *Newell v. Hinton*, 556 So.2d 1037, 1044 (Miss. 1990), and is in direct violation of the Clean Hands Doctrine

17. That due to the PLAINTIFF's contemptuous nature and actions, your DEFENDANT here has been forced to bring this action. Accordingly, your DEFENDANT requests that pursuant to *Newell v. Hinton*, 556 So.2d 1037, 1043 (Miss. 1990) and *Stauffer v. Stauffer*, 379 So.2d 922, 924 (Miss 1980), it is proper for the DEFENDANT to be awarded attorney's fees.

WHEREFORE, PREMISES CONSIDERED, Movant prays that this his answer to

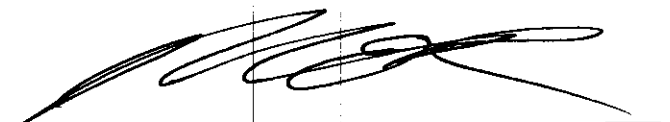
Petition for Citation of Contempt and Other Relief and Counterclaim for Citation of Contempt, Modification of Custody, and Other Relief be received and filed, and that upon final hearing the Movant be awarded the following, to-wit:

- A. That the PLAINTIFF be found in willful and contumacious contempt by this Court;
- B. That the PLAINTIFF be ordered to immediately purge herself of contempt;

- C. That the Court modify the custody Order entered in this cause, ordering the PLAINTIFF to relinquish custody of the minor child to the DEFENDANT, ordering child support obligations, whatever they may be determined to be, be paid by the PLAINTIFF, and ordering that the PLAINTIFF be responsible for half of all costs associated with any extracurricular activities the minor child may participate in;
- D. That the previous Order of the Court be modified to restrict the PLAINTIFF's interference in the DEFENDANT's parenting of the minor children and to provide that should the PLAINTIFF continue to interfere with the DEFENDANT's rights and continue to be physically and mentally abusive to such minor child, the PLAINTIFF shall forfeit any unrestricted or unsupervised visitations which the Court might find fit to grant the PLAINTIFF upon modification of the custody Order.
- E. That the PLAINTIFF be denied any award of attorney's fees for her attorney of record because the DEFENDANT is, indeed, not in willful or deliberate violation of the prior judgment or decree due to unclean hands by willful or deliberate violation of the prior judgement or decree herself.
- F. That the DEFENDANT be awarded his reasonable attorney's fees for his attorney of record.

Movant prays for such other, further, and more general relief as in the premises may appear meet and proper.

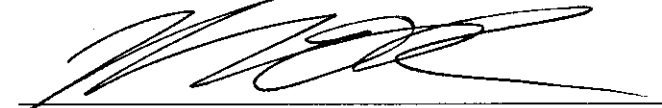
Respectfully submitted this the 8th day of May, 2017.



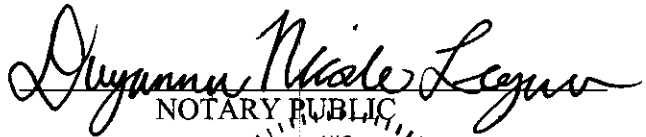
MATTHEW OLIVER REARDON, DEFENDANT
OXFORD, MS 38655
(662)736-8398

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Before me, the undersigned authority in and for the aforesaid county and state, personally appeared the within named MATTHEW OLIVER REARDON, who stated that he signed the above and foregoing instrument on the day and date therein mentioned, and that the facts and things contained therein are true and correct as therein stated.


MATTHEW OLIVER REARDON

SWORN TO AND SUBSCRIBED before me, this the 8 day of MAY, 2017.


NOTARY PUBLIC

My Commission Expires:

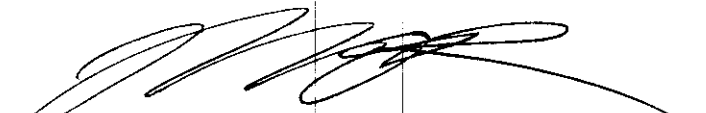
Aug 2, 2020

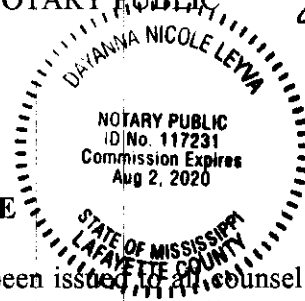
CERTIFICATE OF SERVICE

I hereby certify that the above and foregoing notice has been issued to all counsel of record, by email transmission and by placing a copy of the same in the United States mail, postage prepaid and properly addressed to:

MONA T. PITTMAN, ESQ.
P.O. BOX 2958
OXFORD, MS 38655

this 8 day of MAY, 2017.


MATTHEW OLIVER REARDON



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2017 MAY 10 PM 4: 22

PLAINTIFF

V.

CHANCELLOR

CAUSE NO: CV-2016-422W

MATTHEW OLIVER REARDON

BY: KC

DEFENDANT

ORDER

THIS CAUSE having been set for hearing on May 9, 2017, regarding the *Temporary Restraining Order* entered by this Court on May 1, 2017, the Court, pursuant to Rule 65 of the Mississippi Rules of Civil Procedure hereby withdraws its Order dated May 1, 2017, and enters the following Preliminary Injunction which has been agreed to by both parties:

1. That the Petitioner is hereby granted continued sole legal and physical custody of the minor child.
2. That the Respondent shall continue unto the Petitioner the amount of \$600.00 as child support every month on the 1st day of the month beginning May 1, 2017, and continuing until further Order of this Court.
3. That pursuant to an agreement between the parties, the Respondent shall have supervised visitation with the parties' minor child every other Sunday from ~~2~~3:00 p.m. until ~~2~~3:20 *pm* p.m. on the premises of the Oxford Police Department, beginning Sunday, May 14, 2017. Said visitations shall be supervised by Shannon Flemons and Maddie Dorris.
4. With the exception of the aforementioned supervised visitation, the Respondent is restrained from going onto the property of the Petitioner, the Petitioner's work, the child's schools or any other place where the child may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner and/or

the minor child. The Respondent is further restrained from being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties; from visiting or contacting the residence of the Plaintiff; having contact with the Plaintiff or L.E.R., in person through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or

indirectly, *except that the Respondent may relay video messages to the minor child through an attorney of his choosing who may forward the video to the Attorney for the Petitioner who will provide the video to the minor child. The Petitioner may likewise provide a response video from the minor child to the Respondent through her attorney.*

5. That the Respondent is restrained from going onto the property of the Petitioner's attorney, the Petitioner's attorney's work, her children's schools or any other place where the her children may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner attorney, her immediate family, her former husband, and her children. The Respondent is further restrained from being located within 500 yards from the Petitioner's attorney, her immediate family, and her children; from visiting or contacting the residence of the Petitioner's attorney; having contact with the Petitioner's attorney her immediate family, in person through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or indirectly.

6. ~~That the Sheriff of Lafayette County, Mississippi and his deputies and all other law enforcement officers, city, county or state, should be authorized, empowered and directed immediately to take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette County Jail if he violates any provision of this Temporary Restraining Order.~~ *Reel*

7. That both parties have agreed to undergo psychological examination, evaluation and testing by Dr. Joe Edd Morris in Tupelo, Mississippi and will cooperate with Dr. Morris and provide any and all documentation, releases for information, etc. to Dr. Morris in furtherance of the psychological examination, evaluation and testing as he deems fit. Each party will be

responsible the costs associated with his/her examination, evaluation and testing. The parties will immediately follow the recommendations of Dr. Joe Edd Morris as to counseling/treatment.

8. That both parties have agreed to undergo hair follicle drug and alcohol testing no later than Friday, May, 19, 2017 through Capital DNA Testing, phone number 601-201-0880, at their own expense. Each party shall be responsible for contacting Capital DNA Testing and making arrangements for scheduling of the same and will sign releases for the same to be released to Petitioner's attorney.

9. That the Petitioner agrees to have delivered to Oxford Police Department the following items at 10:00 a.m. on Saturday, May 13, 2017, for retrieval by the respondent:

- a. Respondent's 48-inch Samsung Smart TV with remote;
- b. Respondent's 42-inch Flat Screen TV store in pantry;
- c. Respondent's kitchen table with 4 chairs;
- d. Respondent's 4 in 1 Smoker Grill Set;
- e. Respondent's Samsung Galaxy Tablet (white);
- f. Respondent's car seat; and
- g. Respondent's other personal belongings in garage.

10. That the parties hereby agree that neither shall make disparaging remarks about the other to the minor child and that each party hereby agrees to refrain from making comments on social media regarding each other, the Court, the attorneys, and the nature/extent of the Court proceedings.

11. That all matters remaining before this Court will be held in abeyance at this time.

12. This matter is continued for further hearing until the 10th day of August, 2017, at the Lafayette County Courthouse, is Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the

parties may be heard.

SO ORDERED on this, the 10th day of May, 2017, *name per fax to May 9, 2017. Then*

Rosent U Whittier
CHANCELLOR

This order prepared by:

MONA T. PITTMAN
MSB # 9754
Attorney for Plaintiff
P.O. Box 2958
Oxford, MS 38655
Telephone: (662) 234-9346
mona@panola.com

Approved:

CHARLES E. YOW, II
MSB # 104420
Attorney for Respondent
The High Cotton Building
1300 Van Buren #112
Oxford, MS 38655
Telephone: (662) 232-2440
ceyow@yowlaw.com

COVER SHEET
Civil Case Filing Form
(To be completed by Attorney/Party
Prior to Filing of Pleading)

Mississippi Supreme Court
Administrative Office of Courts

Form AOC/01
(Revised 1/1/2001)

Court Identification

Docket Number

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County # Judicial Court ID
District (CH, CI, CO)

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Month Date Year

Case Year

2016

Docket Number

422

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Local Docket ID

(w)

This area to be completed by clerk

Case Number if filed prior to 1/1/94

IN THE CHANCERY COURT OF LAFAYETTE COUNTY

Short Style of Case:

Party Filing Initial Pleading: Type/Print Name Mona Pittman

Check (✓) if Not an Attorney

Check (✓) if Pro Hac Vice

Signature

MS Bar No. 9754

Compensatory Damages Sought: \$

Punitive Damages Sought: \$

Is Child Support contemplated as an issue in this suit? Yes No

If "yes" is checked, please submit a completed Child Support Information Sheet with Final Decree/Judgment

PLAINTIFF - PARTY(IES) INITIALLY BRINGING SUIT SHOULD BE ENTERED FIRST (FIRST NAME IN SHORT STYLE) - ENTER ADDITIONAL PLAINTIFFS ON SEPARATE FORM

Individual Crowder Phyllis ()
Last Name First Name Maiden Name, if Applicable Middle Init. Jr/Sr/III/IV

Address of Plaintiff

Check (✓) if Individual Plaintiff is acting in capacity as Executor(trix) or Administrator(trix) of an Estate, and enter style:

Estate of

Check (✓) if Individual Plaintiff is acting in capacity as Business Owner/Operator (d/b/a) or State Agency, and enter entity:

D/B/A / Agency

Business

Enter legal name of business, corporation, partnership, agency - If Corporation, indicate state where incorporated

Check (✓) if Business Plaintiff is filing suit in the name of an entity other than the above, and enter below:

D/B/A:

DEFENDANT - NAME OF DEFENDANT (FIRST NAME IN SHORT STYLE) - ENTER ADDITIONAL DEFENDANTS ON SEPARATE FORM

Individual Reardon Matthew ()
Last Name First Name Maiden Name, if Applicable Middle Init. Jr/Sr/III/IV

Check (✓) if Individual Defendant is acting in capacity as Executor(trix) or Administrator(trix) of an Estate, and enter style:

Estate of

Check (✓) if Individual Defendant is acting in capacity as Business Owner/Operator (d/b/a) or State Agency, and enter entity:

D/B/A / Agency

Business

Enter legal name of business, corporation, partnership, agency - If Corporation, indicate state where incorporated

Check (✓) if Business Defendant is being sued in the name of an entity other than the above, and enter below:

D/B/A:

ATTORNEY FOR THIS DEFENDANT: Bar No. or Name: Pro Hac Vice (✓)

(If known)

In left hand column, check one (1) box that best describes the nature of this suit. In right hand column check all boxes which indicate secondary claims.

Business/Commercial

- ☐ Accounting (Business)
- ☐ Bankruptcy
- ☐ Business Dissolution - Corporation
- ☐ Business Dissolution - Partnership
- ☐ Debt Collection
- ☐ Employment
- ☐ Examination of Debtor
- ☐ Execution
- ☐ Foreign Judgment
- ☐ Garnishment
- ☐ Pension
- ☐ Receivership
- ☐ Replevin
- ☐ Stockholder Suit
- ☐ Other

Domestic Relations

- ☐ Child Custody/Visitation
- ☐ Child Support
- ☐ Contempt
- ☐ Divorce: Fault
- ☐ Divorce: Irreconcilable Differences
- ☐ Domestic Abuse
- ☐ Emancipation
- ☐ Modification
- ☐ Paternity
- ☐ Property Division
- ☐ Separate Maintenance
- ☐ Termination of Parental Rights
- ☐ UIFSA (formerly URESA)
- ☐ Other

Contract

- ☐ Breach of Contract
- ☐ Installment Contract
- ☐ Insurance
- ☐ Product Liability under Contract
- ☐ Specific Performance
- ☐ Other

Probate

- ☐ Accounting (Probate)
- ☐ Birth Certificate Correction
- ☐ Commitment
- ☐ Conservatorship
- ☐ Guardianship
- ☐ Heirship
- ☐ Intestate Estate
- ☐ Minor's Settlement
- ☐ Muniment of Title
- ☐ Name Change
- ☐ Power of Attorney
- ☐ Testate Estate
- ☐ Will Contest
- ☐ Other

Statutes/Rules

- ☐ Bond Validation
- ☐ Civil Forfeiture
- ☐ Declaratory Judgment
- ☐ ERISA
- ☐ Eminent Domain
- ☐ Extraordinary Writ
- ☐ Federal Statutes
- ☐ Injunction or Restraining Order
- ☐ Municipal Annexation
- ☐ Racketeering (RICO)
- ☐ Railroad
- ☐ Seaman
- ☐ Other

Appeals

- ☐ Administrative Agency
- ☐ County Court
- ☐ Hardship Petition (Driver License)
- ☐ Justice Court
- ☐ MS Employment Security Comm'n
- ☐ Municipal Court
- ☐ Oil & Gas Board
- ☐ Workers' Compensation
- ☐ Other

Children and Minors - Non-Domestic

- ☐ Adoption - Noncontested
- ☐ Consent to Abortion for Minor
- ☐ Removal of Minority
- ☐ Other

Torts - Personal Injury

- ☐ Bad Faith
- ☐ Fraud
- ☐ Loss of Consortium
- ☐ Malpractice - Legal
- ☐ Malpractice - Medical
- ☐ Negligence - General
- ☐ Negligence - Motor Vehicle
- ☐ Products Liability
- ☐ Wrongful Death
- ☐ Other

Mass Tort

- ☐ Asbestos
- ☐ Chemical Spill
- ☐ Dioxin
- ☐ Hand/Arm Vibration
- ☐ Hearing Loss
- ☐ Radioactive Materials
- ☐ Other

Real Property

- ☐ Adverse Possession
- ☐ Ejectment
- ☐ Eminent Domain
- ☐ Judicial Foreclosure
- ☐ Lien Assertion
- ☐ Partition
- ☐ Receiver Appointment
- ☐ Tax Sale: Confirmation/Cancellation
- ☐ Title, Boundary &/or Easement
- ☐ Other

Civil Rights

- ☐ Elections
- ☐ Habeas Corpus
- ☐ Post Conviction Relief
- ☐ Prisoner
- ☐ Other

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

PLAINTIFF

vs.

2017 MAY 26 PM 3:32

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

PETITION FOR CITATION OF CONTEMPT

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Citation of Contempt against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult, resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That on May 10, 2017, this Court entered an Order which provided, in part, that the Defendant is restricted from "contacting harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner...in person, through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or indirectly." A true and correct copy of said Order is attached hereto as Exhibit "A".

4.

That further, the Court's Order restrained Matthew Oliver Reardon from "contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner's attorney...in person through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or indirectly." See Attached Order.

5.

That in paragraph 10 of the Court's Order dated May 10, 2017, the Court Ordered that each party agreed to refrain from making comments on social medial regarding each other, the Court, the attorneys, and the nature/extent of the Court proceedings. See Attached Order.

6.

Additionally, in paragraph 2 of the Court's Order, Matthew Oliver Reardon was ordered to continue to pay \$600.00 in child support to the Petitioner and although he has paid \$2,000.00 toward the arrearage, the Defendant has failed to pay child his continued child support obligation.

7.

That the Defendant herein, Matthew Oliver Reardon, has willfully and contumaciously failed to comply with the Order of this Court, and therefore, the Plaintiff requests that the Court find that Matthew Oliver Reardon in both criminal contempt and civil contempt of this Court for his willful failure and/or refusal to abide by the Orders of this Court, and prays that he be immediately incarcerated until further Orders of this Court.

8.

That since the entry of the May 10, 2017 Defendant's behavior has become increasingly and extremely erratic, volatile and threatening in nature, as he is mixing illegal drugs and alcohol while in possession of what Matthew Oliver Reardon purports to be a loaded assault weapon, and therefore, Plaintiff requests that the Psychological Evaluation previously Ordered by this Court take place immediately and that the Court make a determination as to whether an involuntary judicial commitment is appropriate.

9.

That Plaintiff has incurred attorney's fees in bringing this action and requests that the Defendant Matthew Oliver Reardon should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should

be taxed to Matthew Oliver Reardon.

RESPECTFULLY SUBMITTED, this the 20th day of May, 2017.



MONA T. PITTMAN, MSB # 9754
Attorney for the Plaintiff

MONA T. PITTMAN, ESQUIRE
P. O. Box 2958
Oxford, Mississippi 38655
Telephone: (662) 234-9346
Facsimile: (888) 922-5946
mona@panola.com

STATE OF MISSISSIPPI

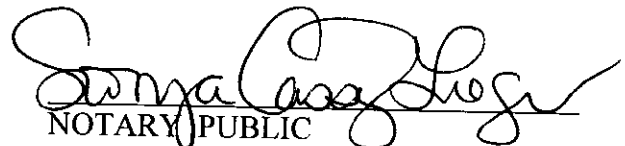
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Citation of Contempt are true and correct as therein stated.

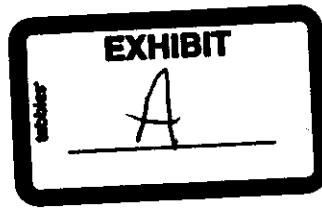
This the ____ day of May, 2017.


Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the 20 day of May, 2017.


NOTARY PUBLIC

MY COMMISSION EXPIRES: Oct 20, 2017



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

MAY 10 PM 4:22

PLAINTIFF

V.

COURT CLERK

CAUSE NO: CV-2016-422W

MATTHEW OLIVER REARDON

BY: KC

DEFENDANT

ORDER

THIS CAUSE having been set for hearing on May 9, 2017, regarding the *Temporary Restraining Order* entered by this Court on May 1, 2017, the Court, pursuant to Rule 65 of the Mississippi Rules of Civil Procedure hereby withdraws its Order dated May 1, 2017, and enters the following Preliminary Injunction which has been agreed to by both parties:

1. That the Petitioner is hereby granted continued sole legal and physical custody of the minor child.

2. That the Respondent shall continue unto the Petitioner the amount of \$600.00 as child support every month on the 1st day of the month beginning May 1, 2017, and continuing until further Order of this Court.

3. That pursuant to an agreement between the parties, the Respondent shall have supervised visitation with the parties' minor child every other Sunday from 2:00 p.m. until 2:20 p.m. on the premises of the Oxford Police Department, beginning Sunday, May 14, 2017. Said visitations shall be supervised by Shannon Flemons and Maddie Dorris. *One*

4. With the exception of the aforementioned supervised visitation, the Respondent is restrained from going onto the property of the Petitioner, the Petitioner's work, the child's schools or any other place where the child may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner and/or

the minor child. The Respondent is further restrained from being located within 500 yards from Phyllis and from L.E.R., the minor child of the parties; from visiting or contacting the residence of the Plaintiff; having contact with the Plaintiff or L.E.R., in person through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or

except that the Respondent may relay video messages to the minor child through an attorney of his choosing who may forward the video to the Attorney for the petitioner who will provide the video to the minor child. The Petitioner may likewise provide a response video from the minor child to the Respondent through her attorney.

5. That the Respondent is restrained from going onto the property of the Petitioner's attorney, the Petitioner's attorney's work, her children's schools or any other place where the her children may be and is further restricted from contacting, harassing, intimidating, stalking, threatening or otherwise interfering with the Petitioner attorney, her immediate family, her former husband, and her children. The Respondent is further restrained from being located within 500 yards from the Petitioner's attorney, her immediate family, and her children; from visiting or contacting the residence of the Petitioner's attorney; having contact with the Petitioner's attorney her immediate family, in person through third parties, phone, text, drone, computer, tablet or any other technical device, or any other means, directly or indirectly.

6. That the Sheriff of Lafayette County, Mississippi and his deputies and all other law enforcement officers, city, county or state, should be authorized, empowered and directed immediately to take Matthew Oliver Reardon into custody, without further order, and incarcerate him in the Lafayette County Jail if he violates any provision of this Temporary Restraining Order. *Re*

7. That both parties have agreed to undergo psychological examination, evaluation and testing by Dr. Joe Edd Morris in Tupelo, Mississippi and will cooperate with Dr. Morris and provide any and all documentation, releases for information, etc. to Dr. Morris in furtherance of the psychological examination, evaluation and testing as he deems fit. Each party will be

responsible the costs associated with his/her examination, evaluation and testing. The parties will immediately follow the recommendations of Dr. Joe Edd Morris as to counseling/treatment.

8. That both parties have agreed to undergo hair follicle drug and alcohol testing no later than Friday, May, 19, 2017 through Capital DNA Testing, phone number 601-201-0880, at their own expense. Each party shall be responsible for contacting Capital DNA Testing and making arrangements for scheduling of the same and will sign releases for the same to be released to Petitioner's attorney.

9. That the Petitioner agrees to have delivered to Oxford Police Department the following items at 10:00 a.m. on Saturday, May 13, 2017, for retrieval by the respondent:

- a. Respondent's 48-inch Samsung Smart TV with remote;
- b. Respondent's 42-inch Flat Screen TV store in pantry;
- c. Respondent's kitchen table with 4 chairs;
- d. Respondent's 4 in 1 Smoker Grill Set;
- e. Respondent's Samsung Galaxy Tablet (white);
- f. Respondent's car seat; and
- g. Respondent's other personal belongings in garage.

10. That the parties hereby agree that neither shall make disparaging remarks about the other to the minor child and that each party hereby agrees to refrain from making comments on social media regarding each other, the Court, the attorneys, and the nature/extent of the Court proceedings.

11. That all matters remaining before this Court will be held in abeyance at this time.

12. This matter is continued for further hearing until the 10th day of August, 2017, at the Lafayette County Courthouse, is Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the

parties may be heard.

SO ORDERED on this, the 10th day of May, 2017, *None, no time to MAY 9, 2017. Then*

Robert C. Whittman
CHANCELLOR

This order prepared by:

MONA T. PITTMAN
MSB # 9754
Attorney for Plaintiff
P.O. Box 2958
Oxford, MS 38655
Telephone: (662) 234-9346
mona@panola.com

Approved:

CHARLES E. YOW, II
MSB # 104420
Attorney for Respondent
The High Cotton Building
1300 Van Buren #112
Oxford, MS 38655
Telephone: (662) 232-2440
ceyow@yowlaw.com

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

PLAINTIFF

V.

2017 MAY 30 AM 9:07 CAUSE NO: 2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

BY: grise
SUMMONS

TO: Matthew Reardon
Oxford, MS

TAKE NOTICE that a hearing will be held in the above styled and numbered action to which you are a Defendant on the 8th day of June 2017, at 9:30 a.m. a.m., at the Lafayette County Chancery Courthouse in Oxford, Mississippi.

() The action against you is one described by Rule 81(d)(1), MRCP, which is triable 30 days after completion of service of process in any manner other than by publication, or 30 days after the first publication where process is by publication.

(X) The action against you is one described by Rule 81(d)(2), MRCP, which is triable 7 days after service of process in any manner other than by publication or 30 days after the first publication where process is by publication.

Attached to this Summons is a copy of a Petition for Citation for Contempt. Although Rule 81(d)(4) does not require you to file an answer or other pleading, you may do so if you deem it necessary to properly develop the issues, or if you are required to do so by the Court.

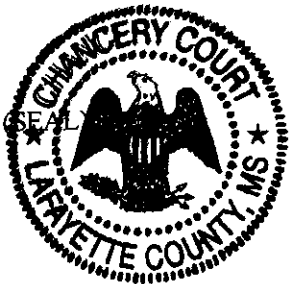
In the event, however, YOU SHOULD APPEAR IN COURT IN PERSON ON THE DATE, TIME AND AT THE PLACE DESIGNATED ABOVE to defend the action. Failure to appear may result in a judgment against you.

ISSUED under my hand and seal of said Court, on this the 26 day of May, 2017.

Sherry Wall
CHANCERY COURT CLERK

BY:

Annie Baker
Deputy Clerk



PROOF OF SERVICE
(Process Server)

TO: Matt Reardon

I, the undersigned process server, served the Petition to Modify upon the person or entity named above in the manner set forth below (process server must check proper space and provide all additional information that is requested and pertinent to the mode of service used):

First Class Mail and Acknowledgement of Service. By mailing (by first class mail, postage prepaid), on the date stated in the attached Notice, copies to the person served, together with copies of the form of Notice and Acknowledgement and return envelope, postage prepaid, addressed to the sender.

✓ Personal Service. I personally delivered copies to Matt Reardon on the 30th day of May, 2017, where I found said person in Lafayette County of the State MS.

Residence Service. After exercising reasonable diligence I was unable to deliver copies to said person within County, _____. I served the Petition of Citation of Contempt on the _____ day of _____, 2017, at the usual place of abode of said person by leaving a true copy of the Petition of Citation of Contempt with who is the _____ (here insert wife, husband, son, daughter or other person as the case may be), a member of the family of the person served above the age of sixteen years and willing to receive the Summons and Complaint/Petition, and thereafter on the _____ day of _____, 2017, I mailed (by first class mail, postage prepaid) copies to the person served at his or her usual place of abode where the copies were left).

At the time of service I was at least 18 years of age and not a party to this action.

Fee for service: \$

Process server must list below: [Please print or type]

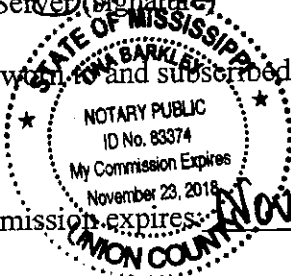
Name: Cassidy Logan
Address: PO Box 2958
Oxford MS 38655
State of MS
County of Lafayette

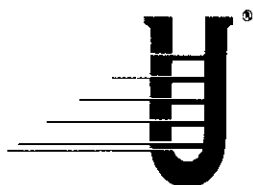
Personally appeared before me the undersigned authority in and for the state and county aforesaid, the within named Cassidy Logan who being first duly sworn states on oath that the matters and facts set forth in the foregoing "Proof of Service-Summons" are true and correct as therein stated.

Cassidy Logan
Process Server (signature)

Sworn to and subscribed before me this the 30th day of May, 2017.

Anna Barkley
Notary Public
My Commission Expires: Nov. 23, 2018



**UNITED STATES DRUG TESTING LABORATORIES**

1700 S. MOUNT PROSPECT ROAD
DES PLAINES, ILLINOIS 60018-1804
847-375-0770 fax 847-375-0775

2017 MAY 30 AM 9:42

CHANDLER / 05/17/17

CV 2016-422

Report To Brandy Jones
Capital DNA Testing
368 Scarbrough St
Richland, MS 39218

Client F111408MS
Client Capital DNA Testing
Location
Collector BRANDY JONES

Sample Information

Specimen ID 3733131
Name MATTHEW REARDON
Lab Sample ID 2085098
SSN/DonorID 801186335

Test Reason Court Order
Type Hair
Collected 5/18/2017 13:57
Received 5/19/2017 12:25
Report Date 5/24/2017 15:31

Tests Requested

HAIR5ETG HairStat-5 + ETG		Sample POSITIVE		
Test	Result	Quantitation	Screen Cutoff	Confirm
AMPHETAMINES	negative		500 pg/mg	
COCAINES	negative		500 pg/mg	
OPIATES	negative		200 pg/mg	
PCP	negative		300 pg/mg	
CANNABINOIDS	POSITIVE		1 pg/mg	
Carboxy-THC GC/MS	POSITIVE	2.33 pg/mg		0.05 pg/mg
ETHYL GLUCURONIDE	POSITIVE		20 pg/mg	
Ethyl Glucuronide LCMSMS	POSITIVE	90 pg/mg		20 pg/mg

Additional Sample Information

Head Hair

Sample Comments

Test developed and characteristics determined by United States Drug Testing Laboratories, Inc. See Compliance Statement on our website http://www.usdtl.com/compliance_statement

Certification

Data approved by Rose Rios on 5/24/2017